VANCOUVER PUBLIC SCHOOLS

VPS

Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted online at www.vansd.org on **Friday, March 30, 2024**:

Procedure 2090, Program Evaluation;

Procedure 3520, Student Fees, Fines and Charges;

Procedure 4040, Public Access to District Records; and

Procedure 6605, Student Safety Walking, Biking and Riding Buses to School

Procedure – Program Evaluation

Testing Program

A. ~~A district program evaluation committee, that includes representatives from the staff, will meet as needed to review the district assessment program. The committee will submit its recommendation to the superintendent for the following year's assessment program by May 15. The recommendation will include~~ The district will develop a schedule for all assessment activities to be conducted during the year. In its review, the ~~committee~~ district will consider whether to include such factors as:

1. Validity. Do the proposed assessment materials measure the district's objectives? Are the items compatible with the district scope and sequence?

2. Administration. Are directions clear for the teacher and for the students? Is the format effective?

3. Interpretation of Results. Are results reported in a form that is meaningful to the teacher, the student, the district, and parents?

B. The assessment schedule will be distributed to individual schools by August 15. The district office will be responsible for ordering tests, distributing materials and scoring sheets, and distributing administration instructions. After tests have been scored, the district office will be responsible for:

1. Preparing reports on test results for board, instructional staff, parents/guardians, and the general public;

2. Interpreting scores for staff and interested persons;

3. Disseminating individual scores to staff responsible for counseling, screening, and special placement of individuals; and

4. Preparing reports to evaluate curriculum and assist staff in implementing changes and improvements in curriculum.

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APPROVED:

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~~Dr. Steven Webb~~Jeff Snell, Superintendent Date
Vancouver Public Schools

Procedure – Student Fees, Fines and Charges

I. Fees

A. Student fee schedules for individual buildings must be approved by the superintendent or designee ~~on an~~ annually ~~basis~~. Each building will submit an annual report which includes a report indicating the fees collected by each department. In establishing fees for classes, the following guidelines will be used:

B. Class registration literature will describe fees for each class or activity and the process for obtaining a waiver or fee reduction;

C. A fee may be collected for any program in which the resultant product is in excess of minimum requirements and, at the student's option, becomes the personal property of the student. Fees may not exceed the cost of the materials. The district will furnish materials for those introductory units of instruction where a student is acquiring the fundamental skills for the course. A student must be able to obtain the highest grade offered for the course without being required to purchase extra materials;

D. A fee may be collected for personal physical education and athletic equipment, apparel and towels or towel service. However, any student may provide their own if it meets reasonable requirements and standards relating to health and safety;

E. A reasonable fee, not to exceed the actual annual maintenance cost, for the use of musical instruments and uniforms owned or rented by the district may be collected;

F. Students may be required to furnish personal or consumable items including pencils, paper, erasers and notebooks;

G. Security deposits for the return of materials or equipment may be collected. Provisions will be made to return the deposit when the student returns the item at the conclusion of the school term; and

H. A fee may be collected for a unit of instruction where the activity necessitates the use of facilities not available on the school premises, and participation in the course is optional on the part of the student. A waiver or fee reduction need not be offered for such activities.

I. Fees will not be levied for:

1. Field trips required as part of a basic educational program or course;

2. Textbooks (non-consumable) that are designated as basic instructional material for a course of study; or

3. Instructional costs for necessary staff employed in any course or educational program.

J. Fee waivers and reductions will be granted to students whose families would have difficulty paying ~~by reason~~because of their low income. For students and families participating in the national school lunch program, the school breakfast program, or both, the USDA Child Nutrition

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Program guidelines will be used to determine qualification for a fee waiver or reduction. The district will, annually, distribute and collect information and an application for all households of children in kindergarten through grade twelve (12) to determine student eligibility for free or reduce-price meals, in compliance with chapter 28A.235 RCW, Policy 6700 and Procedure 6700. If a student has not paid for five (5) or more previous meals, the school shall follow the procedures and requirements ~~contained~~ in Policy and Procedure 6700.

II. Fines and damage charges

A. A student will be responsible for the cost of replacing any property that is lost or willfully damaged. The student and their parent or guardian will be notified regarding the nature of the charge for damages or fines, whether the student's diploma may be withheld, how restitution may be made, and how an appeal may be instituted.

B. The student or their parent or guardian may appeal the imposition of a charge for damages or fines.

1. When the damages or fines do not exceed $100, the student or their parent or guardian may resolve the appeal through an informal conference with the principal or through formal the appeal process for short-term suspension.

2. When damages are in excess of $100, the formal appeal process for long-term suspension will apply. ~~Fines or damage charges may be levied for lost or willfully damaged textbooks, library books or equipment. In the event the student does not make proper restitution, the student's diplomas may be withheld. If a student is unable to pay the fine or charge, the student may make restitution through community service.~~

~~B. A fine or damage charge may be appealed to the superintendent or designee. Care will be exercised by advising students and their parents, in writing, regarding the nature of the fine or damage charges, how restitution may be made, and how a student or their parents may request a hearing.~~

C. When the district withholds students' diplomas for failure to pay a fine or damage charge, or make restitution through community service, ~~related to lost or damaged school property,~~ the district will publish and maintain the following information on its website:

1. the number of diplomas withheld, by graduating class, during the ~~previous~~ preceding five (5) ~~three (3)~~ school years, with data from the prior reporting year updated annually to reflect the release of diplomas; and

2. the number of students with withheld diplomas who were eligible for free or reduced-price meals during their last two years of enrollment in the district.

III~~V~~.Deposit

All fees will be deposited with the business office on a regular basis. The respective departments and schools will be credited ~~by~~ with the amount of their deposit.

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APPROVED:

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Dr. Jeff Snell, Superintendent Date
Vancouver Public Schools

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Procedure - Public Access to District Records

I. Purpose of these Procedures and General Principles

A. These procedures have been established by the superintendent and published pursuant to board Policy 4040 and RCW 42.56.040 to explain the process for public access to school district records and to provide guidance in how the district will respond to such requests.

B. School district records relating to the conduct of operations and functions of the district that have been prepared, owned, used, or retained by the district in any format are, in fact, public records to which members of the public may request access consistent with this procedure.

C. When processing such requests, the district will provide the fullest assistance to the requestor and provide a response in the timeliest manner possible.

II. District Public records officer

A. For the most timely and efficient response, requests for school district records should be directed in writing to the public records officer listed below, whose responsibilities include serving as a point of contact for members of the public in this process and overseeing the district's compliance with the Washington Public Records Act, Chapter 42.56 RCW, and Policy 4040.

B. The current public records officer of the district may be reached at the district's central administrative building as follows:

1. Office of the Legal Counsel
   Phone: 360-313-1280
   Fax: 360-313-1012
   Public Records Request Center: https://vansd.org/public-records-request/

2. Information regarding contacting the public records officer is also available at the district website at www.vansd.org.

III. Public records officer Training

Consistent with state law, the public records officer shall complete trainings related to the Washington Public Records Act and public records retention no later than ninety (90) days after assuming the responsibilities of the public records officer. After the initial training(s), the public records officer must complete refresher training at intervals of no more than four years. Training must address particular issues related to the retention, production, and disclosure of electronic documents, including updating and improving technology information services.

IV. Availability of Public Records

A. Public records are available for inspection and copying during normal business hours of the district, Monday through Friday, 8:00 a.m. to 5:00 p.m., during the school year, and 9:00 a.m. to 4:00 p.m., on days school is not in session, excluding legal holidays. Records must be inspected at the offices of the district.

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B. The district will maintain its records in a reasonable, organized manner and take reasonable actions to protect records from damage and disorganization. A requestor shall not take district records from district offices without the permission of the public records officer or designee. During the inspection of records, a district employee will typically be present to protect records from damage or disorganization.

C. The district will also maintain a log of public records requests that have been submitted to and processed by the district. This log shall include, but not be limited to, the following information for each request: The identity of the requestor if provided, the date the request was received, the text of the original request, a description of the records produced in response to the request, a description of the records redacted or withheld and the reasons therefore, and the date of the final disposition of the request.

D. A variety of records and information are available on the district website at www.vansd.org. Requestors are encouraged to view the documents available on the website prior to submitting a records request.

V. Making a Request for Public Records

A. Any person wishing to inspect or copy public records of the district shall make the request through the district's online public records request center at https://vansd.org/public-records-request/ or in person during the district's normal office hours, or in writing by letter, fax, or email addressed to the public records officer and including the following information:

1. Name, address, telephone number, and email address of requestor;

2. Identification of the public records adequate for the public records officer or designee to locate the records; and

3. The date the request is submitted to the district.

B. The district recommends submitting all requests through the online public records request center at https://vansd.org/public-records-request/.

C. A request under the Washington Public Records Act, Chapter 42.56 RCW and district Policy 4040 must seek an *identifiable record or identifiable records*. A request for all or substantially all of the records prepared, owned, used, or maintained by the district is not a valid request for identifiable records. General requests for information from the district that do not seek identifiable records are also not covered by Policy 4040. A request for all records discussing a particular topic or containing a particular keyword or name will not be considered a request for all of the district's records.

D. The process for requesting electronic public records is the same as for requesting paper public records. However, to assist the district in responding to a request for electronic records, a requestor should provide specific search terms that will allow the public records officer or designee to locate and assemble identifiable records responsive to the request.

E. Requests for recordings of board meetings made pursuant to RCW 42.30.035 (2) will only be a valid request for an identifiable record when the date of the recording, or a range of dates, is specified in the request. When searching for and providing identifiable recordings,

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no search criteria except date must be considered by the district.

F~~E~~. The district is not obligated by law to create a new record to satisfy a records request for information. The district may choose to create a record depending on the nature of the request and the convenience of providing the information in a new document, such as when data from multiple locations is requested and can be more easily combined into a single new record.

G~~F~~. If the requestor wishes to have copies of the records made instead of inspecting them, the requestor shall make this clear in the request and make arrangements to pay for copies of the records or a deposit.

H~~G~~. The public records officer or designee may accept informal requests for public records by telephone or in person. To avoid any confusion or misunderstanding, however, requestors should be mindful that a request reduced to writing is always the preferred method. If the public records officer or designee receives a request by telephone or in person, the public records officer will confirm their understanding of the request with the requestor in writing.

VI. Processing of Public Records Requests

A. The district typically will process requests in the order received. However, requests also may be processed out of order if doing so allows the most requests to be processed in the most efficient manner.

B. Records requests not made to the public records officer of the district will be forwarded by building level administrators, program administrators, or other staff receiving the request to the public records officer for processing.

C. Within five (5) business days of receipt of a request, the public records officer will do one or more of the following:

1. Provide copies of the record(s) requested or make the record available for inspection or, in the alternative, provide an internet address and link to the district's website where the specific record can be accessed (provided that the requestor has not notified the district that they access the records through the internet);

2. Acknowledge that the district has received the request and provide a reasonable estimate of the time it will require to fully respond;

3. Acknowledge that the district has received the request, and ask the requestor to provide clarification for a request that is unclear, while providing to the greatest extent possible a reasonable estimate of the time the district will require to respond to the request if it is not clarified; or

4. Deny the request (although no request will be denied solely on the basis that the request is overbroad).

D. If the requestor fails to respond to the district's request for clarification within thirty (30) days and the entire request is unclear, the district may close the request and not further respond to it. If the requestor fails to respond to the district's request for clarification within thirty (30) days, and part of the request is unclear, the district will respond to the portion of the request that is clear and may close the remainder of the request.

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E. In unusual circumstances, the district also may seek a court order enjoining disclosure pursuant to law.

F. The district may deny a bot request that is one of multiple requests from the requestor within a twenty-four (24) hour period if the district establishes that responding to the multiple bot requests would cause excessive interference with the district's other essential functions. The district may deem a request to be a bot request when the district reasonably believes the request was automatically generated by a computer program or script.

G. If the district does not respond in writing within five (5) business days of receipt of the request for disclosure, the requestor should contact the public records officer to determine the reason for the failure to respond.

H. The district may inquire into the purpose for which a record is requested and may use the answer to aid in gathering responsive records and determining whether the public has a legitimate interest in obtaining the information. However, a requester is not required to provide a purpose and the district may not decline to furnish the records solely because the requester refuses to furnish a purpose for the request.

I. If the requested records contain information that may affect rights of others and may be arguably exempt from disclosure, the public records officer may, prior to providing the records, give notice to such others. The notice may make it possible for the others to contact the requestor and ask the requestor to revise the request, or, if necessary, seek a court order to prevent or limit the disclosure. The notice to the affected persons also may include a copy of the request.

J. Some records are exempt from disclosure, in whole or in part, under a specific exemption contained in chapter 42.56 RCW or another statute which exempts or prohibits disclosure of specific information or records.

1. If the district believes that a record is exempt from disclosure and should be withheld, the public records officer will state in writing the specific exemption (and statutory section) which applies and provide a brief explanation of how the exemption applies to the record being withheld or redacted. This exemption and explanation will be provided to the requestor in a withholding index or log; and

2. If only a portion of a record is exempt from disclosure, but the remainder is not exempt, the public records officer will redact the exempt portions, provide the nonexempt portions, and indicate to the requestor why portions of the record are being redacted in the withholding index or log.

3. Pursuant to RCW 42.56.070 (2), these rules contain a list of laws—other than those specifically listed in the Washington Public Records Act, Chapter 42.56 RCW—which may exempt disclosure of certain public records or portions of records. The district has identified the following laws:

a) The Family Educational and Privacy Rights Act (FERPA), 20 USC § 1232g (regarding student educational records);

b) Washington State Student Education Records Law, RCW 28A.605.030;

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c) The Individuals with Disabilities Education Act (IDEA), 20 U.S.C. § 1400 et. seq. and 34 C.F.R. Part 300 (protecting the confidentiality of personally identifying information contained in student records of students with disabilities);

d) Privileged communications and attorney work product, such as set forth in Chapter 5.60 RCW;

e) Criminal Records Privacy Act (CRPA), Chapter 10.97, RCW;

f) Information on students receiving free or reduced lunch, 42 USC § 1758(b)(6);

g) Health Insurance Portability and Accountability Act (HIPAA), 45 CFR parts 160-164 (regarding health care information privacy and security);

h) Abuse of Children – Protection and Procedure, RCW 26.44.010; RCW 26.44.030(9);

i) Notification of Juvenile Offenders, RCW 13.04.155(3);

j) Examination question for teachers or pupils prior to the examination, questions, RCW 28A.635.040;

k) Public Law 98-24, Section 527 of the Public Health Services Act, 41 USC § 290dd-2 (confidentiality of alcohol and drug abuse patient records); and

l) United States and Washington Constitutional provisions including, but not limited to, the right of privacy and freedom of association.

K. Under appropriate circumstances, the district may rely upon other legal exemptions that are not set forth above or contained within the public disclosure law.

L. In addition to these exemptions, the Washington Public Records Act exempts the following from public disclosure:

a) RCW 42.56.230(1) exempts personal information in any files maintained for students in public schools.

b) RCW 42.56.230(2)(iii) exempts a student's personal information in any records pertaining to the student, including correspondence.

c) RCW 42.56.250(1)(i) allows an employee who is a survivor of domestic violence, sexual assault, sexual abuse, stalking, or harassment to submit documentation to the district allowing the district to exempt their name and other personally identifying information from public disclosure. See Policy 6513P (Workplace Violence Prevention) for the process an employee must follow to submit the necessary documentation.

d) RCW 42.56.070 (9) prohibits providing access to lists of individuals requested for commercial purposes, and the district may not do so unless specifically authorized or directed by law.

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M~~L~~. The above lists are ~~is~~ for informational purposes only and ~~is~~ are not intended to cover all possible exemptions from the public records law. ~~The above list includes only exemptions, which may be in addition to those set forth in Chapter 42.56 RCW. Under appropriate circumstances, the district may rely upon other legal exemptions, which are not set forth above or contained within the public disclosure law.~~

N~~M~~. Consistent with other demands, and without unreasonably disrupting district operations, the district shall promptly provide for the inspection of nonexempt public records. No member of the public may remove a document from the viewing area without the permission of the public records officer, nor may any member of the public disassemble or alter any document. The requestor shall indicate which documents they wish the district to copy. There is no cost to inspect district records.

O~~N~~. After inspection is complete, the public records officer or designee shall make the requested copies or arrange for copying.

VII. Providing Electronic Records

When a requestor requests records in an electronic format, the public records officer or designee will provide the nonexempt records or portions of such records that are reasonably locatable in an electronic format that is used by the district and is generally commercially available, or in a format that is reasonably translatable from the format in which the district keeps the record.

VIII. Providing Records in Installments

When the request is for a large number of records, the public records officer or designee has the right to provide access for inspection and copying in installments. If, within thirty (30) days, the requestor fails to inspect the entire set of records or one or more of the installments, the public records officer or designee may stop searching for the remaining records and close the request as discussed further below.

IX. Completion of Inspection

When the inspection of the requested records is complete and all requested copies are provided, the public records officer or designee will indicate that the district has completed a diligent search for the requested records and made any located nonexempt records available for inspection.

X. Closing Withdrawn or Abandoned Request

A. The requestor must claim or review the assembled records within thirty (30) days of the district's notification that the records are available for inspection or copying. The district should notify the requestor in writing of this requirement and inform the requestor that they should contact the district to make arrangements to claim or review the records. If the requestor or a representative of the requestor fails to claim or review the records within the thirty (30) day period or make other arrangements, the district may close the request and refile the assembled records.

B. When the requestor either withdraws the request or fails to fulfill to inspect the records or pay the deposit or final payment for the requested copies, the public records officer will close the request and indicate to the requestor that the district has closed the request.

XI. Later Discovered Documents

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If, after the district has informed the requestor that it has provided all available records, the district becomes aware of additional responsive documents existing at the time of the request, it will promptly inform the requestor of the additional documents and provide them on an expedited basis.

XII. Costs of Providing Records; Waiver of Costs and Agreement Regarding Costs

A. The cost of providing photocopies or printed copies of electronic records is 15 cents per page. Payment may be made by cash, check, or money order, payable to the district.

B. The district may also charge actual costs of mailing, including the cost of the shipping container or envelope.

C. Customized Service Charge

1. A customized service charge may be imposed if the district estimates that the request would require the use of information technology expertise to prepare data compilations, or to provide customized electronic access services when such compilations and customized access services are not used by the district for other district purposes. The customized service charge may reimburse the district up to the actual cost of providing the services in this paragraph.

2. The district will not assess a customized service charge unless it has notified the requestor of the customized service charge to be applied to the request, including an explanation of why the customized service charge applies, a description of the specific expertise, and a reasonable estimate cost of the charge. The notice will also provide the requestor the opportunity to amend the request in order to avoid or reduce the cost of a customized service charge.

D. Cost for Electronic Records

The cost for providing electronic records is as follows:

1. Ten Cents ($.10) per page for public records scanned into an electronic format or for the use of District equipment to scan the records;

2. Five Cents ($.05) per each four electronic files or attachment uploaded to email, cloud-based data storage service or other means of electronic delivery;

3. Ten Cents ($.10) per gigabyte for the transmission of public records in an electronic format or for the use of district equipment to send the records electronically; and

4. The actual cost of any digital storage media or device provided by the district, the actual cost of any container or envelope used to mail the copies to the requestor, and the actual postage or delivery charge.

E. The district will take reasonable steps to provide the records in the most efficient manner available to the district in its normal operations;

F. ~~Alternatively, if the district determines and documents that the fees allowed under this procedure are clearly equal to, or more, than Two Dollars ($2.00), the district may instead charge a flat fee of Two Dollars ($2.00) to provide the records. If the district charges a flat fee for the first~~

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~~installment, the district will not charge an additional flat fee or a per page fee for any subsequent installments~~ Fees will be charged for public records only if the district determines and documents that the fees to fulfill the request will exceed five dollars ($5.00).

G. The public records officer or designee may also require the payment of the remainder of the copying costs before providing all the records, or the payment of the costs of copying an installment before providing that installment.

H. If requested, the district will provide a summary of the applicable charges before charges are imposed under this procedure. The requestor will be allowed to revise the request in order to reduce the applicable charges.

I. The district will not impose copying charges for access to or downloading of records that the district routinely posts on its website prior to the receipt of a request, unless the requestor has specifically requested that the district provide copies of such records through other means.

J. Before beginning to make the copies, the public records officer or designee may require a deposit of up to ten percent (10%) of the estimated costs of copying all the records selected by the requestor, including the cost of a customized service charge according to the provision above.

K. The public records officer may waive any charge assessed for a request. On behalf of the district, the public records officer may also enter into any contract, memorandum of understanding, or other agreement with a requestor that provides an alternative fee arrangement to the charges authorized in this Procedure, or in response to a voluminous or frequently occurring request.

Vancouver Public School Fee Schedule	
No fee	Inspection of agency records on agency public internet website or scheduled at agency office.
No fee	Accessing or downloading records the agency routinely posts on its public internet website, unless the requestor asks the agency for records to be provided through other means (the following copy charges below then apply).
Copies	
15 cents/page	Photocopies, printed copies of electronic records when requested by the requestor, or for the use of agency equipment to make photocopies.
10 cents/page	Scanned records, or use of agency equipment for scanning.
5 cents / each 4 electronic files or attachment	Records uploaded to email or cloud-based data storage service, or other means of electronic delivery.
10 cents / gigabyte	Records transmitted in electronic format or for use of agency equipment to send records electronically.
Actual cost	Digital storage media or devices:

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	CD/DVD Thumb drive Other
Actual cost	Postage or delivery charges (specific amount based on postage/delivery charges for specific mailings or deliveries)
Copy charges above may be combined to the extent more than one type of charge applies to copies responsive to a particular request.	
Customized service	
Actual cost	Data compilations prepared or accessed as a customized service (cost is in addition to above fees for copies)

XIII. Internal Review of Denials of Public Records

A. Petition for Internal Administrative Review of Denial of Access
Any person who objects to the initial denial or partial denial of a records request may petition in writing (including email) to the public records officer for a review of that decision. The petition shall include a copy of or reasonably identify the written statement by the public records officer or designee denying the request.

B. Consideration of Petition for Review
The public records officer shall immediately consider the petition and shall either affirm or reverse the denial within two business days following the receipt of the petition, or within such other time as the district and the requestor mutually agree to.

XIV. Reporting Costs of Producing Public Records

The district will provide the information specified in RCW Chapter 40.14 to the Joint Legislative Audit and Review Committee as required by law.

APPROVED:

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~~Dr. Steven Webb~~Jeff Snell, Superintendent Date
Vancouver Public Schools

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(DRAFT 03-04-24)

Procedure - Student Safety Walking, Biking and Riding Buses to School

I. Safe Routes to School Plan

A. Pursuant to WAC 392-151-025, all elementary schools that have students who walk to and from school are required to develop a suggested route plan. These route plans shall limit the number of school crossings so that students move through the crossings in groups. The walking route plan shall be distributed to all students. All schools are encouraged to have a walking/biking route plan in place. ~~To develop the school walking/biking route plans, the superintendent will establish a Safe Routes to School committee.~~

B. The ~~committee~~ district will conduct a walking and biking audit within a one mile radius of the school and develop a Safe Routes to School walking/biking map or plan. The plan will recommend the best routes for students walking to and from school, as well as the best routes to and from school bus stops. In developing the plan, the committee will consider, at a minimum, the following:

1. Traffic patterns;
2. Existing traffic controls;
3. Existing school patrols;
4. Limits on the number of school crossings to encourage students moving through the crossings in groups;
5. Allowing only one entrance-exit from each block to and from school;
6. Routes that provide the greatest physical separation between walking children and traffic;
7. Routes that expose students to the lowest speeds and volumes of moving vehicles; and
8. Routes that include the fewest number of road or rail crossings.

C. The superintendent or designee will review the plan ~~with the Safety Advisory Committee~~ and, upon ~~its~~ their approval, distribute the plan to all students with instructions that it be taken home and discussed with parents/guardians. The plan will be updated as necessary as conditions change. The superintendent or designee will include the plan in the District's School Wellness Plan to encourage parents and students who walk and bike to school to use the recommended routes.

II. Student Conduct on Buses

A. Any misconduct by a student that is detrimental to the safe operation of the bus is sufficient cause for the principal or designee to suspend the transportation privilege. Decisions by the principal or designee to suspend the transportation privilege may be made in consultation with the bus driver or bus supervisor.

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B. Rules of conduct for students riding buses:

1. Students will obey the driver and any ~~aide~~ paraprofessional assigned to the bus by the District. The driver is in full charge of the bus and passengers and will be obeyed. If ~~an aide~~a paraprofessional is assigned to the bus by the District, the paraprofessional ~~aide~~ is also expected to support the safe operation of the bus with respect to student conduct. When transporting classes or teams, the teacher or coach has primary authority over the behavior of the students. Students will obey both the driver, ~~and~~ the teacher, paraprofessional, coach or other District employee.

2. Students will ride only on their assigned bus unless written permission to do otherwise has been received by the District;

3. Students will not be permitted to leave the bus except at their regular stop unless written permission to do otherwise is received by the District;

4. Students who are assigned seats will use only that seat unless permission to change is authorized by the driver;

5. Students will observe rules of classroom conduct while riding on buses. Noise will be kept down to avoid distracting the driver. Students will refrain from the use of obscene language or gestures;

6. Students will not smoke or ignite lighters or matches on buses;

7. Students will not eat on buses, except when specifically authorized and supervised by and accompanying teacher, coach or other District employee. Buses will be kept clean;

8. Students will not open bus windows without the driver's permission;

9. Students will not extend any part of their body out of bus windows at any time;

10. Students will not carry or have in their possession items that can cause injury to passengers on the bus. Such items include, but are not limited to, sticks, breakable containers, weapons or firearms, straps or pins protruding from clothing, large, bulky items which cannot be held or placed between legs, etc. Books and personal belongings will be kept out of aisles;

11. Students will not have animals on buses, except one providing assistance to a disabled student in accordance with District policy;

12. Students will not sit in the driver's seat or to the immediate right or left of the driver;

13. Students will refrain from talking to the driver unless necessary;

14. Students will go directly to a seat once inside the bus and remain seated at all times unless the driver instructs otherwise;

15. Students will get on/off the bus in an orderly manner and will obey the instructions of the driver or school safety patrol on duty. There will be no pushing and shoving when boarding or leaving the bus. Once off the bus, students will adhere to rules for pedestrians;

16. Students will cross the roadway only when the bus driver gives approval and must cross only in front of the bus and never cross the roadway behind a bus unless they use pedestrian

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crosswalks or traffic lights;

17. Students will stand away from the roadway curb when any bus is approaching or leaving a stop and must never approach a bus until it has come to a complete stop and the door has been opened;

18. Students must arrive at their designated bus stop five (5) minutes prior to the scheduled stop time;

19. Students going to and from their bus stops where there are no sidewalks will walk on the left-hand side of the roadway facing oncoming traffic. Students will go directly to their home after leaving the bus;

20. Students will use lap belts on buses when available;

21. Students will follow emergency exit drill procedures as prescribed by the driver;

22. Students will not tamper with emergency doors or equipment;

23. Students will remain quietly seated, not exhibit disruptive behavior and turn off all noise-making devices ~~at highway rail grade crossings~~while on the bus;

24. Parents of students identified as causing damage to buses will be charged with the cost of the incurred damage. Students causing the damage may be suspended from transportation and subject to other disciplinary consequences in accordance with District policy and procedure; and

25. Student misconduct ~~will~~ may constitute sufficient reason for suspending transportation privileges.

III. Disciplinary Procedures

A. Principals or their designee are responsible for addressing students whose behavior results in a bus-incident report or violates the rules above. The principal will designate employees to provide supervision during bus arrival and departure times and receive reports (written and oral) from the drivers.

B. Principals must maintain open lines of communication among relevant District employees, bus drivers and the transportation department.

C. When waiting for a bus, or going to and from a bus stop, students are responsible for conducting themselves according to the behavioral expectations that apply in public and may be subject to the District's code of conduct. That is, they must not abuse or cause damage to private or public property; they must not use obscene language or gestures; they must not engage in criminal activity. Failure to adhere to these standards may result in formal complaints by citizens which may be forwarded to principals for possible corrective action.

D. Students provided with transportation are responsible for complying with the District's rules of conduct for students riding buses and code of conduct. Failure to adhere to these rules, including but not limited to engaging in abusive behavior towards the public, driver, fellow passengers or the vehicle, constitutes justification for initiating corrective action against a student.

E. The driver or bus supervisor may create a written report of student conduct that violates the

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District's rules of conduct for riding buses. In order for drivers and bus supervisors to effectively maintain control on their buses, it is expected that action be exercised by principals when receiving such a report. In the event that the principal determines that no action is necessary, the principal will communicate that decision to the driver or bus supervisor.

F. When a student's conduct constitutes an infraction of the rules of conduct for riding buses or the code of conduct, the driver or bus supervisor will complete a report on the student describing the incident or damage that occurred. The written report is the primary means by which a driver or bus supervisor communicates a student's conduct to the school and transportation department. This report, in most cases, reflects an infraction of rules which is repeated by the student after having received previous oral warnings from the driver or bus supervisor. However, a single infraction may result in a written report. The driver or bus supervisor will provide the student with a copy of the report, hand the original report to the principal or designee and submit a copy to the transportation supervisor. The copy of the report concerning special education students will be given to the principal for disposition.

G. The principal or designee, upon receiving the report, will investigate the circumstances surrounding the incident and is~~act according~~ authorized to take corrective action pertaining to transportation~~ to the procedures set forth below~~, consistent with the procedures below and as determined appropriate to the circumstances. The use of corrective action must have a real and substantial relationship to the orderly and safe operation of the bus, including but not limited to, the preservation of the health and safety of students and employees. ~~. When investigating the incident, the primary concern must be with respect to the safe transport of students. Corrective action, if necessary, should be consistent throughout the District as follows:~~

1. **Pre-referral interventions:** Transportation staff ~~will~~ must document interventions used to correct student misbehavior, such as restorative conversations, a phone call home to parents, or review of the bus rules of conduct.

2. **Warning:** School principal or designee ~~will~~ may contact parent regarding previous interventions and inform parent of consequences if behavior does not improve.

3. **Bus riding contract:** School principal or designee ~~will~~ may make parent contact and issue a bus contract which outlines behavior expectations for the student to continue riding the bus.

4. ~~**Detention**~~**Behavioral interventions:** School principal or designees ~~will~~ may implement behavioral interventions on the bus, assign~~impose~~ lunch detention, or ~~after school detention~~take other appropriate action to correct the student's behavior on the bus.

5. **Short term ~~B~~bus removal**~~ for one day~~: The student ~~will~~ may be removed from the bus for one to five days.~~, and~~ ~~t~~The parent must be contacted to discuss concerns and solutions.

~~6. **Bus removal for three days**: The student will be removed from the bus for three days, and the parent contacted to discuss concerns and solutions.~~

~~**Bus removal for five days**: The student will be removed from the bus for five days, and the parent contacted to discuss concerns and solutions.~~

~~7.~~6. **Extended bus removal:** The student will be removed from the bus for an extended period, as determined by the principal or designee, in consultation with the transportation supervisor, executive director for teaching and learning, and student welfare and attendance office.

~~In addition to the corrective action, above, pertaining to transportation, the principal may take any action deemed appropriate, in accordance with the District's code of conduct.~~

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~~H.~~ The action taken by the principal or designee will be annotated on the bus incident report and forwarded to the student's parent for signature. The transportation department will be notified of all corrective action pertaining to the transportation of the student.

~~I~~H. In the event that a student physically assaults a driver, under no circumstances may the driver retaliate in kind or otherwise physically assault the student. Such conduct will be reported to law enforcement, as appropriate, and may subject the driver to legal action.

~~J~~I. The student or parent of a student who has been suspended from receiving transportation may appeal the principal's decision by submitting a written statement to the superintendent. The superintendent or designee will render a decision after evaluating the issues and facts involved. ~~If the decision is based on issues unrelated to those described in the District's rules of conduct for students riding buses, the decision will require board concurrence before implementation.~~

J. In addition to the corrective action pertaining to transportation, the principal or designee may take any action deemed appropriate, in accordance with Policy 3241 (Student Discipline).

IV. Emergencies

A. The transportation supervisor will review the contents of the School Bus Driver's Handbook with each driver prior to the beginning of each school year. Each driver, in turn, is expected to follow the procedure as outlined in the handbook. At the start of each field trip or extracurricular trip, the school bus driver will review with all passengers the location and use of the emergency exits, emergency equipment and any District emergency procedures.

B. In the event of a collision, the driver will make contact with the transportation supervisor who will:

1. Determine the nature of the collision;
2. Contact emergency services if there is reason to believe that there are injuries which require immediate attention;
3. Contact the state patrol regarding the accident;
4. Advise the superintendent of schools;
5. Investigate the collision and gather the names of all students and witnesses;
6. Dispatch another bus to transport the student to their destination; and
7. Contact the parent(s) or guardian(s) of any students who are injured.

C. To facilitate the responsibilities assigned to the transportation department, the supervisor, in cooperation with the building principals, will compile a list of students, including addresses and phone numbers, who are authorized to ride each bus route.

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APPROVED:

_____ _____

Jeff Snell, Superintendent
Vancouver Public Schools

Date

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